

Projected effect of determinism in jurisprudence: Comparing the legal system in *Les Misérables* to the Common Law system today

Introduction

In the French epic novel *Les Misérables* by Victor Hugo, the convictions on Jean Valjean for stealing bread and escaping from *le bagne*, a penal labor camp typically for convicts, are undoubtedly harsh; his sentence is at first 5 years for stealing and finally extended to 19 years for attempting escapes (Hugo 1887).

The true tragedy of Valjean's sentence lies not just in the disproportionate physical cruelty, but in the judge's indifference to his morally good motive: saving his sister's children's lives from starvation through a loaf of bread. When the gavel fell, it did not merely condemn a man; it doomed an innocent family – these motives did nothing to distinguish him from other thieves. Nineteenth-century legal absolutism assumed that Jean was guilty because he was a free agent who deliberately chose to steal. The reality that his choice was largely restricted by his moral responsibility to his sister and his intuition to survive from starvation, was entirely dismissed. This assumption largely negates determinism in favor of libertarianism, assuming that Jean's choice is due to his free will rather than his experience or present desperation.

The judgment of Jean's case shows how determinism is fully rejected in that legal system, since his motivation and difficulty did not affect the judgment at all. By contrast, such a judgment would probably never repeat in modern legal systems; modern legal systems operate in the middle ground of compatibilism, acknowledging that free will coexists with external restrictions. Presently, most legal systems are likely to distinguish thieves who steal for saving others' lives from thieves who steal for extra benefit, and murderers with mental issues from other murderers.

However, if legislators and judges were to fully accept the philosophical theory of determinism, the justice system would undergo a paradigm shift. Ultimately, the complete acceptance of determinism would eradicate moral retribution in criminal sentencing, diverging the penal system into two distinct paths: rehabilitative environmental modification for involuntary offenders versus permanent physical seclusion for those deemed dangerous to society.

The fundamental purpose of the legal system is to restrict and modify personal choice, which means it cannot fully adopt "hard-determinism" – the belief that one's choices are pre-determined and unchangeable. If behavior could not be altered by human intervention, the justice system would be pointless. Thus, the modern legal

system probably builds on the practical assumption that population behavior can be prevented and controlled. While our choices are undeniably shaped by our environment, that environment can be deliberately modified to foster better choices.

Determinism states that one's choices are shaped by environmental factors which can be altered by human intervention to change one's choice. If the legal system fully accepted that a person's choices are determined entirely by preceding causes, the fundamental philosophy of punishment would change from penalizing a free agent's poor moral choices, to actively modifying the offender's environment to prevent their exposure to anything that would induce crime, or permanently secluding those whose dangerous behavior is deemed inevitable. Specifically, normal physical constraints such as fines and limited imprisonment will reduce while social constraints such as group segregation and forced community service may be encouraged to reshape the individual's surroundings.

However, if legislators accept the hardest form of determinism – believing some individuals are inevitably pre-determined to harm society and cannot be changed by environmental intervention, temporary rehabilitation becomes impossible and useless. To manage this risk, the most extreme physical sentences - life imprisonment and the death penalty - would likely be applied to more cases to permanently seclude threats from society.

Biological Determinism

To understand how a fully deterministic legal system would work, we must first examine how modern courts currently handle biological restrictions on an agent's control. Under current compatibilist frameworks, psychiatric testimony is used as an “affirmative defense of lack of criminal responsibility (New York Criminal Procedure Law 60.55. 2025)”, provided it concerns the defendant's mental condition at the time of the conduct charged to constitute a crime.

Though its effect in jurisprudence varies from case to case, it is undeniable that this is repetitively used in defense to mitigate sentences. For example, in *People v. Poddar* (1974), the defendant was charged with murder, pleaded not guilty by reason of insanity, and convicted of second-degree murder rather than first-degree murder conviction. Similarly, in *Atkins v. Virginia* (2002), Atkins' death penalty was refuted because he was mentally retarded.

The limits of this modern compromise are best depicted by *People v. Weinstein* (1992), when judges admitted that an agent's free will is restricted by physical change. Herbert Weinstein, a 65-year-old man with no prior history of violence, strangled his wife and threw her from a window. His defense utilized cutting-edge

PET scans to reveal a massive subarachnoid cyst compressing his prefrontal cortex - the area of the brain responsible for impulse control and rational judgment. The court admitted this evidence, reducing his charge from first-degree to second-degree murder.

The aforementioned cases illustrate how courts agree that people do not always have absolute control over themselves. However, they also highlight the system's current refusal to fully embrace determinism. Factually, Weinstein, Poddar, and Atkins were far from being forgiven; their retaliatory sentences were reduced, not cancelled. The courts maintained that their free will coexisted with external restrictions, such as biological impulse. That is, those restrictions only limit but do not eliminate all of an agent's choices, and in most cases, that agent can have other choices not to commit a crime. In that case, if the crime is still committed, it remains reasonable to penalize the agent's morality. This prevailing philosophy in today's Common Law system aligns with compatibilism, which posits that one's choice is the result of mutual interaction between personal agency and external factors.

Hence, if biological determinism was fully accepted, criminal sentencing would transition from retributive incarceration to clinical management. Under full determinism, an offender like Weinstein would not receive a "reduced" prison sentence. Instead, the sentence would depend on biological treatability. That is, if the biological trigger could be surgically removed, the sentence would mandate medical intervention followed by full reintegration into society. In contrast, if the biological trigger is deemed untreatable, the sentence would mandate permanent, non-punitive medical confinement. In other words, imprisonment would no longer serve as a means to punish perpetrators, but rather quarantine them in clinical facilities to protect society from an untreatable biological threat.

Social Determinism

Compared to biological determinism, social determinism introduces a more complex dynamic into jurisprudence because it evaluates the environmental and cultural contexts surrounding the perpetrator. Often, judges reject that one's choices are restricted by social factors to a considerable extent, and in turn believe that individuals can choose not to harm society regardless of their context.

The limits of social determinism are exemplified by *Williams v. New York* (1949). Williams was charged with first-degree murder for attempting to rob a taxi driver and shooting that driver in the process. In the trial, the jury confirmed Williams guilty and advised life imprisonment. However, after reading the probation report which included his criminal history, social relationships, and past alleged misconduct, the judge declared a death sentence, increasing the retributive penalty to protect society. Evidently,

social factors were taken into consideration by the court, eventually resulting in an increased retributive sentence.

Conversely, social determinism can lead to less retributive punishment when the offender poses no ongoing threat. For instance, in *People v. Superior Court (Du)* (1992), Korean immigrant Soon Ja Du, shot her customer Latasha Harlins, who was suspected of stealing a juice from her family's market. Du was charged with second-degree murder, with the court concluding that her motive to shoot was "unlawful" and "neither justifiable nor excusable". However, the judge accepted the suggestion in the probation report and noted that Du was unlikely to repeat her crime. In this case, partial acceptance of determinism leads to less retributive punishment. The probation officer suggests "it is true that this defendant would be most unlikely to repeat this or any other crime if she were allowed to remain free" and notices that "defendant's failure to verbalize her remorse to the probation department [was] much more likely a result of cultural and language barriers rather than an indication of a lack of true remorse".

Therefore, if the justice system fully embraced social determinism, criminal choices would be viewed as symptoms of an offender's external environment, rather than internal agency, transforming sentences from punitive moral retribution into tools of forced environmental engineering. Consequently, "involuntary" offenders who are unlikely to reoffend, like Du, would avoid fixed imprisonment in favor of continuous regulation like mandatory community service, to positive reshape their behavioral conditioning. On the other hand, offenders like Williams would face extreme physical penalties like life imprisonment or the death penalty, with the primary aim to seclude dangerous threats from society.

Connections to Jean's Case

If Jean Valjean was judged by today's Common Law system, it is probable that Jean Valjean can be defended in the following ways to reduce his sentence.

First, he is likely to be one of the defendants who "would be most unlikely to repeat this or any other crime if he or she were allowed to remain free" because he has no past criminal records and exhibits no disobedience when he was arrested. Second, he can explain his motive to save his sister's children, which is justifiable and excusable. Third, excuses such as the absence of service in the bread shop and the system's failure to catch most of the other thieves may also be used to justify his behavior. Jean could therefore reduce his 19-year sentence.

The transition from the legal system in *Les Misérables* to the modern Common Law system represents a clear shift from strong anti-determinism, toward

compatibilism, accepting partial determinism. Consequently, while today's courts still enforce individual accountability, this partial acceptance reduces retributive sentences for offenders whose choices are limited to biological or social factors.

The Deterministic Dichotomy: Seclusion versus Rehabilitation

If determinism were fully adopted, legislators would be forced to categorize offenders into a strict dichotomy: "hopeless" criminals versus "involuntary" criminals. Hard determinism suggests that some individuals cannot gain control over their choices. Much like the mythological Oedipus, who was born to marry his mother and kill his dad under the deterministic framework (Oedipus 2026). If that is the case, fully accepting determinism means judges and legislators must accept that someone's choice to commit crime and harm others is inevitable and can hardly be prevented. Determinism may only push them to use more extreme physical penalties such as the death penalty and life imprisonment to seclude such threats from society.

Conversely, involuntary criminals including Jean, Du, and Weinstein would likely face an entirely different fate. Since their behavior fluctuates with their environment, the sentence will shift from fixed imprisonment and one-time fines, to forced displacement and continuous regulation. Methods like mandatory community service would become the new standard, like in the U.S. legal system today, pushing offenders into constructive environment that reshape their behavioral conditioning.

Conclusion

Overall, a fully deterministic justice system breaks down societal narratives that often demonize perpetrators based on an illusion of absolute free will. By reframing criminals as symptomatic products of unequal power dynamics and fractured environments, the law ceases to engineer further victimhood and focus on actively healing the society it serves.

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